

Disposition

Plaintiff's Motion is granted. Judgment will be entered in the amount of \$27,049.74.

Plaintiff to file order on Motion, as well as submit Judgment.

8. 9:00 AM CASE NUMBER: L25-05640
CASE NAME: AMERICAN EXPRESS NATIONAL BANK VS. MICHELLE KING
*HEARING ON MOTION IN RE: MSJ
FILED BY: AMERICAN EXPRESS NATIONAL BANK

TENTATIVE RULING:

Wells Fargo v. Bryan Manuel

Background

Plaintiff filed a Motion for Summary Judgment (the "MSJ"), along with a Declaration of Cesar Cervantes, and a Separate Statement of Undisputed Material Facts. The Motion and supporting documents are unopposed.

Plaintiff timely served Defendant via mail at an address provided on the Answer.

Analysis

The procedure by which a party may seek pretrial entry of judgment on the ground that there is no dispute of material fact is summary judgment or, when the request is for a dispositive ruling on one of multiple claims within an action, summary adjudication. Code Civ. Proc. § 437c; Rule 3.1350 of the California Rules of Court (CRC); see *Weiss v. People ex rel. Dept. of Transportation* (2020) 9 Cal.5th 840, 864; see generally CJER, *California Judges Benchbook: Civil Proceedings before Trial* (2022) ("CJER Civ. Proc. before Trial"), § 13.2 *et seq.* A motion for summary adjudication shall be granted only if it completely disposes of a cause of action, an affirmative defense, a claim for damages, or an issue of duty. Code Civ. Proc. § 437c(f)(1).

Courts deciding motions for summary judgment or summary adjudication may not weigh the evidence but must instead view it in the light most favorable to the opposing party and draw all reasonable inferences in favor of that party. *Weiss v. People ex rel. Dept. of Transportation, supra*, 9 Cal.5th at 864. To ensure that the opposing party has notice of the factual issues in dispute and an opportunity to present the evidence relevant to the motion, the parties must submit separate statements of undisputed facts. *Id.* at 864; see Code Civ. Proc. § 437c(c) and CRC 3.1350(d).

The party moving for summary judgment bears the burden of persuasion that there is no triable issue of material fact and that the party is entitled to judgment as a matter of law.

Aguilar v. Atlantic Richfield Co. (2001) 25 Cal.4th 826, 850; see CJER Civ. Proc. before Trial, § 13.60. There is a triable issue of material fact if, and only if, the evidence would allow a reasonable trier of fact to find the underlying fact in favor of the party opposing the motion in accordance with the applicable standard of proof. *Id.* A plaintiff bears the burden of persuasion that each element of the cause of action in question has been proved, and hence that there is no defense thereto. *Id.* A defendant bears the burden of persuasion that one or more elements of the cause of action in question cannot be established, or that there is a complete defense thereto. *Id.*

The party moving for summary judgment bears an initial burden of production to make a *prima facie* showing of the nonexistence of any triable issue of material fact; if the moving party carries its burden of production, the burden shifts to the opposing party who then has a burden of production to make a *prima facie* showing of the existence of a triable issue of material fact. *Aguilar v. Atlantic Richfield Co.*, *supra*, 25 Cal.4th at 850.

Cause of Action: Breach of Contract

To establish a claim for breach of contract, a plaintiff must establish: (1) the existence of the contract, (2) plaintiff's performance or excuse for nonperformance, (3) defendant's breach, and (4) the resulting damage to Plaintiff. *Oasis West Realty, LLC v. Goldman* (2011) 51 Cal.4th 811, 821.

In the instant matter, the court first finds that the declaration of Cesar Cervantes, submitted by the Plaintiff, is admissible under the Business Records exception to hearsay. Mr. Cervantes declared that he was familiar with the record keeping practice of American Express, and that the records were kept in the ordinary course of business and generated at or about the time of event occurrence. In addition, statements about the custom and practice of American Express, such as their practice of providing Customer Agreements to consumers, as well as the fact that accounts cannot be used unless cards are activated by the cardholder, are admitted.

Next, the court evaluates whether Plaintiff has made a *prima facie* showing of a Breach of Contract.

Plaintiff has provided credit card billing statements and a Cardholder Agreement. The Cardholder Agreement provides the terms, such as making payments for costs incurred, receiving account statements, and the acceptance of the agreement terms by use of the card and account. Mr. Cervantes also declared that it was the custom and policy of Plaintiff to issue such an agreement whenever a party applies for a credit card.

These exhibits, coupled with the declaration of Mr. Cervantes, establish a *prima facie*

showing for Breach of Contract, and that the balance owed to the Plaintiff is \$3,832.87. There is evidence of an implied contract in that an agreement was mailed to Defendant, and he then, with knowledge of the terms, activated and used the card for purchases. The billing statements reflect that Defendant did not repay all of the money that was given to him for the purchases.

The burden would normally shift to the Defendant at this point, but the Motion is unopposed.

A memo of costs, filed on 1/20/26, reflects that Plaintiff incurred costs of \$297.61.

Disposition

The Court finds and orders as follows:

1. The MSJ is GRANTED.
2. Plaintiff to prepare the order after hearing.

9. 9:00 AM CASE NUMBER: L25-07106
CASE NAME: STATE FARM MUTUAL AUTOMOBILE INSURANCE COMPANY VS. JUAN SALAZAR
***HEARING ON MOTION IN RE: TO SET ASIDE DEFAULT AGAINST DEFENDANTS**
FILED BY: SALAZAR, JUAN
***TENTATIVE RULING**

Defendants filed a Motion to set aside entry of default and default judgment.

Plaintiff filed a timely Response.

Background

The lawsuit is a subrogation matter where Defendants were alleged to be the responsible parties in a car accident in which the victim was insured by the Plaintiff.

Defendants argue that the default judgments against them should be set aside, under Section 473(b) of the CCP, because they failed to provide the process documents to their insurance company. This failure, they argue, qualifies as a mistake of fact, inadvertence, or excusable neglect.

They also allude to the fact that the service of these documents was not done on them personally.

No other reasons are offered.

The Complaint was filed on 6/26/25. Default was entered 11/12/25, with Judgment filed on 7/24/26.